



EDISCOVERY SERVICES AGREEMENT

THIS LEGAL SERVICES AGREEMENT (the “Agreement”) is made and entered into as of May 7, 2026 (the “Effective Date”), by and between Kate Dunnington Law, PLLC, a law firm organized under the laws of the State of Kentucky, and its subsidiary, eDiscovery Results, LLC (hereinafter collectively referred to as “KDLaw”), and Oldfather Law Firm, PLLC (hereinafter referred to as “Client”).

RECITALS

WHEREAS, KDLaw is a law firm that provides eDiscovery services to other law firms;

WHEREAS, Client desires to engage KDLaw to provide certain legal services related to eDiscovery for the Timmi Tinker Medical Negligence matter as set forth herein; and

WHEREAS, KDLaw desires to provide such services to Client on the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. SCOPE OF SERVICES

1.1 Services.

KDLaw shall provide to Client the eDiscovery legal services (the “Services”) as described in this Agreement and in any Statement of Work (“SOW”) that may be executed by the parties from time to time. The Services may include, but are not limited to, the following:

1. Strategic consultation related to document collection, processing, review, and production;
2. Development and implementation of eDiscovery protocols or plans;
3. Organizing and collaborating with eDiscovery vendors and experts;
4. Consultation regarding preservation obligations and litigation holds;
5. Analysis and review of electronically stored information (“ESI”);
6. Preparation of privilege logs;

7. Preparation of discovery documents, briefs, draft expert reports, and other legal documentation related to eDiscovery matters;
8. Deposition services;
9. Custodian interviews; and
10. Other eDiscovery-related services as agreed upon by the parties.

1.2 Limited Representation.

Client acknowledges and agrees that KDLaw's representation is limited to the specific Services described in this Agreement and any applicable SOW. Client is responsible for overall litigation and client strategy. KDLaw is not undertaking representation in any litigation or other matters beyond the scope of the Services. KDLaw shall not be responsible for:

1. Providing substantive legal advice on the merits of any underlying litigation;
2. Appearing in court or at depositions on behalf of Client or Client's clients, except as agreed upon in writing by KDLaw and Client;
3. Drafting pleadings, motions, or other court filings, except as agreed upon in writing by KDLaw and Client;
4. Communicating directly with Client's clients unless specifically authorized by Client; or
5. Other legal and consultation services not expressly included in the scope of Services.

1.3 Statements of Work.

For specific eDiscovery projects, the parties may execute separate SOWs that describe the particular Services to be provided, timelines, deliverables, and any project-specific terms. Each SOW shall be incorporated into and become part of this Agreement.

1.4 Modification of Services.

Any material changes to the Services must be agreed upon in writing by both parties. Client may request changes to the Services by submitting a written request to KDLaw. KDLaw shall respond to such requests within five (5) business days, indicating whether the requested changes are feasible and any impact on fees, expenses, or timelines. If, at any time following the Effective Date of this Agreement, it becomes apparent to KDLaw that one or more Services are not feasible, KDLaw will promptly notify Client and discuss potential modifications to the Services. No modification to the Services shall be effective until documented in a written amendment to this Agreement or applicable SOW signed by both parties.

1.5 Status Meetings.

KDLaw shall conduct regular status meetings with Client to discuss the progress of the Services, any issues or concerns, and upcoming tasks or deadlines. The frequency of such meetings shall be determined by mutual agreement of the parties based on the nature and complexity of the Services being provided.

1.6 Compliance with Laws

KDLaw shall perform the Services in compliance with all applicable federal, state, and local laws, rules, and regulations, including, without limitation, all applicable rules of professional conduct and ethical obligations governing attorneys. No work will be performed that may violate such rules.

2. FEES AND EXPENSES

2.1 Hourly Rate.

Client shall pay KDLaw for the Services at the rate of Three Hundred and Twenty-Five Dollars (\$325.00) per hour. KDLaw shall bill in increments of one-sixth (1/6) of an hour.

2.2 Rate Adjustments.

KDLaw may adjust its hourly rate upon thirty (30) days' written notice to Client. Any rate adjustment shall apply only to Services performed after the effective date of such adjustment and shall not affect the rate for Services performed prior to such date.

2.3 Expenses.

Client shall be responsible for all reasonable and necessary expenses incurred in connection with the provision of the Services, including reimbursing KDLaw for any such expenses incurred by KDLaw. Expenses may include:

1. Vendor and expert fees for eDiscovery platforms, hosting, processing, and production;
2. Data storage costs;
3. Reasonable travel expenses, if travel is required and pre-approved by Client; and
4. Other reasonable expenses directly related to the provision of the Services.

Vendor and expert retainer agreements associated with the Services will be between Client and the vendor or expert. KDLaw is not a party to such agreements. Client will be responsible for paying fees associated with such agreements.

2.4 Invoices and Payment.

KDLaw shall invoice Client twice a month for fees and expenses incurred. Each invoice shall include a detailed description of the Services performed, the time spent on each task, the applicable hourly rate, and an itemized list of expenses with supporting documentation. Client shall pay within thirty (30) days of receipt of the invoice. Any amounts not paid when due shall bear interest at the rate of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is less, from the due date until paid.

2.5 Disputed Invoices.

If Client disputes any portion of an invoice, Client shall notify KDLaw in writing within fifteen (15) days of receipt of the invoice, specifying in reasonable detail the basis for the dispute. Client shall pay all undisputed portions of the invoice in accordance with Section 2.4. The parties shall work in good faith to resolve any disputed amounts within thirty (30) days of the Client's notice of dispute.

3. TERM AND TERMINATION

3.1 Term.

This Agreement shall commence on the Effective Date and shall continue until terminated in accordance with the provisions of this Agreement.

3.2 Termination.

Either party may terminate this Agreement at any time and for any reason by providing written notice to the other party in an amount of time that is reasonable under the circumstances.

3.3 Effect of Termination.

Upon termination of this Agreement for any reason:

1. Client shall immediately pay all outstanding fees and expenses incurred through the effective date of termination;
2. KDLaw shall promptly deliver to Client all work product, whether completed or in progress, and all Client materials in KDLaw's possession;
3. KDLaw shall take reasonable steps to minimize any costs or expenses incurred following receipt of a termination notice; and
4. The parties shall cooperate in the orderly transition of the Services.

4. CONFIDENTIALITY

4.1 Confidential Information.

"Confidential Information" means all non-public information disclosed by or on behalf of one party (the "Disclosing Party") to the other party (the "Receiving Party") in connection with this Agreement, whether orally, in writing, or by other means, and whether or not marked or otherwise identified as confidential. Confidential Information includes, but is not limited to:

1. Information that is protected by KY SCR 3.130(1.6) ("Confidentiality of Information");
2. Client data, documents, and communications, including privileged and work product materials;

3. Information regarding the underlying litigation or legal matters;
4. Business strategies, plans, and practices;
5. Financial information and data;
6. Technical information, including eDiscovery methodologies, protocols, and procedures; and
7. Any other information that should reasonably be recognized as confidential information of the Disclosing Party pursuant to federal or state law.

Confidential Information does not include information that: (i) is or becomes publicly available through no fault of the Receiving Party; (ii) was known to the Receiving Party prior to disclosure by the Disclosing Party without any obligation of confidentiality; (iii) is rightfully received by the Receiving Party from a third party without any obligation of confidentiality; or (iv) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

4.2 Protection of Confidential Information.

The Receiving Party shall:

1. Use the Disclosing Party's Confidential Information solely for the purpose of performing its obligations or exercising its rights under this Agreement;
2. Protect the Disclosing Party's Confidential Information according to the applicable rules of professional conduct;
3. Not disclose the Disclosing Party's Confidential Information to any third party without the Disclosing Party's prior written consent, except as permitted by Section 4.3; and
4. Limit access to the Disclosing Party's Confidential Information to those of its employees, agents, and subcontractors who have a need to know such information for purposes of performing the Receiving Party's obligations or exercising its rights under this Agreement, and who are bound by confidentiality obligations at least as restrictive as those contained in this Agreement.

This provision shall survive the termination of this Agreement.

4.3 Required Disclosure.

The Receiving Party may disclose the Disclosing Party's Confidential Information to the extent required by law, regulation, court order, state bar association, or other legal process, provided that the Receiving Party may only disclose that portion of the Confidential Information that it is legally required to disclose.

4.4 Attorney-Client Privilege and Work Product.

The parties acknowledge that certain information exchanged in connection with the Services may be protected by the attorney-client privilege, work product doctrine, or other applicable legal privileges or protections. Nothing in this Agreement is intended to waive or diminish any such

privileges or protections. The parties shall take reasonable steps to preserve and protect all applicable privileges and shall promptly notify each other of any attempt by a third party to obtain privileged information.

5. REPRESENTATIONS AND WARRANTIES

5.1 Mutual Representations and Warranties.

Each party represents and warrants to the other party that:

1. It is duly organized, validly existing, and in good standing under the laws of the jurisdiction of its organization;
2. It has the full right, power, and authority to enter into this Agreement and to perform its obligations hereunder;
3. The execution of this Agreement by its representative has been duly authorized by all necessary organizational action; and
4. When executed and delivered by both parties, this Agreement will constitute the legal, valid, and binding obligation of such party, enforceable against such party in accordance with its terms.

5.2 KDLaw Representations and Warranties.

KDLaw represents and warrants to Client that it shall perform the Services in a professional and workmanlike manner in accordance with generally recognized industry standards for similar services, however KDLaw does not guarantee any particular outcome.

5.3 Disclaimer of Warranties.

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, EACH PARTY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING, BUT NOT LIMITED TO, ANY WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

1. DISPUTE RESOLUTION

7.1 Good Faith Negotiation.

The parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement by negotiation between members who have authority to settle the dispute.

7.2 Mediation.

If the dispute cannot be resolved by negotiation within thirty (30) days after either party has provided written notice of the dispute to the other party, the parties shall submit the dispute to non-binding mediation before a mutually acceptable mediator, prior to initiating any lawsuit, to attempt

resolution of the dispute. The parties shall share equally the costs of the mediator and the mediation proceedings.

7.3 Injunctive Relief.

Notwithstanding the foregoing, either party may seek injunctive or other equitable relief in any court of competent jurisdiction to prevent or stop a breach of this Agreement, including, without limitation, to protect its Confidential Information.

2. MISCELLANEOUS

8.1 Entire Agreement.

This Agreement, together with any SOWs and any other documents incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, representations, and understandings of the parties, whether written or oral.

8.2 Amendments.

No amendment to or modification of this Agreement shall be effective unless it is in writing and signed by both parties.

8.3 Waiver.

No waiver by any party shall operate or be construed as a waiver in respect of any failure, breach, or default not expressly identified by such written waiver, whether of a similar or different character, and whether occurring before or after that waiver. No failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof; nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege.

8.4 Severability.

If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction. Upon such determination that any term or other provision is invalid, illegal, or unenforceable, the parties shall negotiate in good faith to modify this Agreement to reflect the original intent of the parties as closely as possible in a mutually acceptable manner in order that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.

8.5 Assignment.

Neither party may assign, transfer, or delegate any or all of its rights or obligations under this Agreement without the prior written consent of the other party, which consent shall not be unreasonably withheld or delayed; provided, however, that either party may assign this Agreement to an affiliate or to a successor in interest in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets without the other party's consent. Any purported assignment, transfer, or delegation in violation of this Section shall be null and void. This Agreement shall be binding upon and shall inure to the benefit of the parties and their respective successors and permitted assigns.

8.6 No Third-Party Beneficiaries.

This Agreement is for the sole benefit of the parties hereto and their respective successors and permitted assigns and nothing herein, express or implied, is intended to or shall confer upon any other person or entity any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.

8.7 Choice of Law.

This Agreement and all matters arising out of or relating to this Agreement shall be governed by and construed in accordance with the laws of the State of Kentucky without giving effect to any choice or conflict of law provision or rule.

8.8 Counterparts.

This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement. A signed copy of this Agreement delivered by facsimile, email, or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

8.9 Relationship of the Parties.

Nothing contained in this Agreement shall be construed as creating any agency, partnership, joint venture, or other form of joint enterprise or employment between the parties, and neither party shall have authority to contract for or bind the other party in any manner whatsoever.

8.10 Indemnification.

Each Party will indemnify the other for third-party claims to the extent caused by its own gross negligence or willful misconduct.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Client: _____ **Date:** ____ / ____ / 20__

Print Name: _____

KATE DUNNINGTON LAW, PLLC

By: Kate A. Dunnington _____ **Date:** ____ / ____ / 20__

Title: Owner